

Case 3-1: Accuracy in Reporting

You currently work as an environmental engineer for Ventus Power, which operates wind energy facilities in five states: Arizona, Nevada, New Mexico, Texas, and Wyoming. Included in your responsibilities is monitoring of wildlife impact at the Sweetwater facility and the periodic preparation of reports to be submitted to the US Department of Energy and the US Fish and Wildlife Service (USFWS).

You have just prepared a report indicating that fatal bird collisions with the wind turbines at Sweetwater are at a new high for the third consecutive quarter. You know this evidence of a persistent and growing hazard to migratory birds will trigger a visit from regulators and a potential interruption of operations. And mitigation efforts will likely cost the company at least \$500,000.

Your supervisor, Garrett Driscoll, says the higher level could be regarded as a “temporary blip” and asks you to “adjust” the data so that the facility appears to be running safely. He explains, “We can’t afford the expensive repair. It might also cost us jobs. And the publicity will be terrible—antagonizing the environmentalists and discouraging investors.”

You decide to write a memo to Driscoll telling him that, as a professional engineer, the National Society of Professional Engineers (NSPE) code of ethics does not allow you to misrepresent information. You must report this information as you know it. You recognize that Driscoll will disagree with your decision and will likely share the letter with his bosses. In your message to Driscoll, you explain why you must report this information according to your profession’s standards of practice. Before you compose your letter, you again review the NSPE ethics guidelines (Figure 3-1).

Question: Why should you write to Driscoll instead of just telling him?

Sample Case 3.1: Accuracy in Reporting

Source: Elizabeth Tebeaux and Sam Dragga, *The Essentials of Technical Writing*, 2015, Oxford University Press: New York; p. 49.

CASE DOCUMENT 3-1

DATE: October 24, 2012
TO: Garrett Driscoll
SUBJECT: High Levels of Fatal Bird Collisions at Sweetwater

Garrett:

I understand your concern regarding the cost of solving our facility's problem with fatal bird collisions. The \$500,000 reparation expenditure will indeed affect our company financially. However, the high mortality rate cannot be viewed as a mere technicality. The facility's unintentional bird kills are again at a new high, and the number will persist or grow if we do not take measures to mitigate. Excessive fatal collisions put us in legal jeopardy as well as do callous injury to bird populations. Adjusting the data so that the facility appears to be operating without incident would be an explicit violation of an engineer's ethical standards.

As an environmental engineer, I adhere to the Code of Ethics instituted by the National Society of Professional Engineers. I will report this data to the USFWS and the Department of Energy as is. As soon as we have the okay from the corporate office for expenditures, I will assess the situation and determine a suitable fix.

I believe that accurately reporting the statistics will positively contribute to our reputation and the integrity of this company.

Questions: Do you believe this response will be satisfactory? How could you improve it?

Sample Case 3.1: Case Document

Source: Elizabeth Tebeaux and Sam Dragga, *The Essentials of Technical Writing*, 2015, Oxford University Press: New York; p. 50.

You complete your report and submit it to the vice president of operations for signatures and submission to the USFWS. You also keep a copy on your computer. You are satisfied that you have followed the actions required by the NSPE code of ethics. Driscoll is annoyed but quiet, and you assume that he has resigned himself to your decision. Soon thereafter you leave Sweetwater for a supervisory position at the Albuquerque facility.

A year later, you read in the newspaper that the US Department of Justice is investigating Ventus Power for violating the Migratory Bird Treaty Act. It appears that scores of fatal collisions of migratory birds, including eagles, at the Sweetwater Wind Facility were never reported to the Fish and Wildlife Service and no mitigation efforts were instituted.

Almost immediately you find yourself interrogated by investigators from the Department of Justice and the USFWS as well as corporate officials at Ventus Power. Luckily, you still have a copy of your report on your computer as well as a copy of your message to Driscoll.

Sample Case 3.1: Outcome of Case

Source: Elizabeth Tebeaux and Sam Dragga, *The Essentials of Technical Writing*, 2015, Oxford University Press: New York; p. 51.